Rahul Kumar vs State Nct Of Delhi on 18 November, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2471/2022
RAHUL KUMAR ..... Pe
Through: Mr Bajinder Singh, A

versus

STATE NCT OF DELHI ..... R
Through: Mr Aashneet Singh, A
SI Manoj Kumar, IFSO
Delhi Police

CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 18.11.2022

1. This is an application seeking anticipatory bail in FIR No. 0100/2022 dated 05.05.2022, under Sections 419/420 IPC, registered at Police Station- Special Cell, Lodhi Colony, Delhi.

2. In the preset case, the FIR has been lodged on 05.05.2022 by one Mr Abhinandan Chatterjee alleging that he had received a call from HDFC bank, KG Marg stating that his PAN card number is updated but asking for his wife's PAN card number is not updated. A link was sent and as soon as the applicant pressed the link and filled his wife's PAN card number, he received an OTP. On filling the OTP, immediately the money was siphoned off from the account of the wife of the complainant. The amount siphoned off was to the tune of Rs. 29,54,967/-.

3. As per the status report, an amount of Rs. 9,99,994/- was credited in the credit card of the applicant. The amount so credited has been withdrawn in cash.

4. It is stated by Mr Bajinder Singh, learned counsel for the applicant that in the present case, the applicant shared his credit card and the OTP with his friend Anuj Dubey. It is his friend Anuj Dubey who has withdrawn the money and siphoned it off. The applicant has only lent his credit card to a friend bonafidely and is not involved either in the siphoning of funds or the fraud.

5. Per contra, Mr Aashneet Singh, learned APP has stated that in the present case, the amount was credited to the credit card of the applicant. As per the investigation, the amount has been withdrawn by the applicant and one Jai Prakash Shah has identified the applicant withdrawing the said money.

He further states that the applicant has five credit cards and there is transaction to the tune of Rs. 42 lakhs in those five credit cards. He further states that Anuj Dubey and his father Brijesh Dubey have already given their statement that no amount has been withdrawn by them.

6. I have heard learned counsel for the parties.

7. In the preset case, the allegations against the applicant are serious. Admittedly, the amount of Rs. 9,99,994/- has been credited to the credit card of the applicant. There is also one Jai Prakash Shah who has identified the applicant as withdrawing cash from Pranav Online Solution Pvt. Ltd. I am of the view that the custodial interrogation of the applicant is required as the amount of Rs. 9,99,994/- is required to be recovered. The said amount has not been recovered so far despite the fact that the Anuj Dubey and Brijesh Dubey are in custody. The case property is yet to be recovered. The details of how the money was siphoned off also needs to be investigated. In this view of the matter, I am not inclined to entertain the application.

8. The application is dismissed.

JASMEET SINGH, J NOVEMBER 18, 2022 sr Click here to check corrigendum, if any